

# HOUSE . . . . . No. 2727

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Thomas P. Walsh*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to overdose fatalities.

PETITION OF:

| NAME:                  | DISTRICT/ADDRESS: | DATE ADDED:      |
|------------------------|-------------------|------------------|
| <i>Thomas P. Walsh</i> | <i>12th Essex</i> | <i>1/15/2025</i> |

# HOUSE . . . . . No. 2727

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By Representative Walsh of Peabody, a petition (accompanied by bill, House, No. 2727) of Thomas P. Walsh relative to establishing a daily log of all responses to calls for assistance relating to opiate overdoses. Public Safety and Homeland Security.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 2418 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to overdose fatalities.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 41 of the General Laws, as appearing in the 2022 Official Edition, is hereby  
2 amended by inserting after section 98H the following section:-

3           Section 98I. (a) Each city, town or district police department and fire department shall  
4 keep a daily log of all responses to calls for assistance relating to an opiate overdose, which shall  
5 include the name of the person experiencing the overdose, their home address, the address to  
6 which the department responded to the call, and whether or not the overdose was fatal. All such  
7 daily logs shall be recorded in a central database, and shall be accessible to all city, town or  
8 district police departments and fire departments.

9 (c) Daily logs developed pursuant to this section shall not be public records nor shall the  
10 information contained in such logs be disclosed to the public. Further, such information shall  
11 only be accessed by police department and fire department personnel, and shall be used to  
12 monitor overdose responses and fatalities, and to provide updated information for departments  
13 carrying out overdose follow-up visits.

14 (d) Any police department or fire department personnel carrying out overdose follow-up  
15 visits shall routinely check the database for any updated information prior to any follow-up visit.

16 (e) The department of public safety and security shall consider input from city, town and  
17 district police departments and fire departments, and shall promulgate regulations regarding the  
18 central database and information sharing, and said regulations shall be in compliance with any  
19 federal standards for protecting personal health information.